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Gamez v. Los Angeles Unified School District

25STCV10674

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Employment
Form Interrogatories (Set Two)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Special Interrogatories
(Set Two)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Requests
for Production (Set Two)

Tentative Ruling

The motions are granted in part and denied in
part. Please see below for details.

Background

This case arises out of an employment
relationship.

On April 10, 2025, Verioska Gamez
("Plaintiff") filed the complaint in this action against Los Angeles Unified
School District ("Defendant") and Does 1 through 50.

On August 21, 2025, Plaintiff filed a First

Amended Complaint (the “FAC”), the operative pleading, asserting causes of action for: (1) failure to provide reasonable accommodation in violation of the California Fair Employment and Housing Act (the “FEHA”); (2) failure to engage in the interactive process in violation of the FEHA; (3) disability discrimination in violation of the FEHA; and (4) retaliation in violation of the FEHA.

On October 27, 2025, Defendant filed its answer to the FAC.

On April 13, 2026, Plaintiff filed these three discovery motions: (1) Motion to Compel Defendant to Provide Further Responses to Employment Form Interrogatories (Set Two); (2) Motion to Compel Defendant to Provide Further Responses to Special Interrogatories (Set Two); and (3) Motion to Compel Defendant to Provide Further Responses to Requests for Production (Set Two).

On April 27, Defendant filed oppositions to the motions relating to special interrogatories and requests for production. No opposition to the motion relating to employment form interrogatories appears in the file.

On May 1, Plaintiff filed replies in support of all three motions. (This suggests that Defendant may have served, but perhaps inadvertently failed to file, an opposition to the motion relating to employment form interrogatories.)

The three motions came on for hearing on May 8, 2026. After conferring with counsel, the Court continued the hearing to June 17. The ordered the parties to meet and confer further and granted leave to the parties to file supplemental reports by no later than June 8.

On June 8, 2026, Plaintiff and Defendant each filed a supplemental report (and Defendant filed a notice of errata the next day, on June 9.) The Court, on its own motion, subsequently continued the hearings.

Trial is set for May 10, 2027.

Legal Standard

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the

propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must set forth specific facts showing good cause for the discovery and must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

Employment

Form Interrogatories

Plaintiff moves

to compel a further response to Employment Form Interrogatories 216.1. The dispute regarding this interrogatory was not resolved through the further efforts of the parties to meet and confer.

Employment Form Interrogatory 216.1 asks:

“Identify each denial of a material allegation and each special or affirmative defense in your PLEADINGS and for each: (a) state all facts upon which you base the denial or special or affirmative defense; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (c) identify all DOCUMENTS and all other tangible things, that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.”

In response, Defendant begins by stating a variety of objections. Those objections are overruled.

As to subdivision (a), the response is not code compliant. Except with regard to Affirmative Defense Nos. 15, 17, 19, and 26, Defendant does not state facts in its response. Defendant’s repeated references to a production of 649 pages (with regard to all affirmative defenses except No. 11) is not in compliance with Code of Civil Procedure section 2030.230 or otherwise code compliant. Defendant either does or does not have facts to support its affirmative defenses. If Defendant does not, it must say so. If Defendant does, it must set forth those facts in a complete and straightforward manner. The response is evasive and opaque, leaving the propounding party to guess at what facts, if any, Defendant has to support its defenses.

As to subdivision (b), the responses is not code compliant. Some individuals are identified by name (as is required), but others are not. Addresses and telephone numbers are not provided. Plaintiff is entitled to the contact information of witnesses with knowledge regarding the claims and defenses in this case. If Defendant’s counsel represents some or all of the individuals identified, the response may state that the witnesses may be contacted through counsel.

As to subdivision (c), the response is not code compliant. The same 649 pages of documents are identified in response to all but one of the affirmative defenses. This is not a complete and straightforward response: it is not sufficient for a responding party to say,

in effect, "Here are some documents and maybe they contain some facts that support some of our defenses, but we aren't going to tell you which documents support which defenses."

The motion to compel a further response to Employment Interrogatory 216.1 is granted.

Special Interrogatories

Plaintiff

initially moved to compel further responses to Special Interrogatories Nos. 11-12, 14-15, 20-21, 24, 26-30, 32, 37, 39-43, 45, 48-53, 56-60, 64-69, 71-79, 82-84, 86-91, 93-94, 96-98, 100, 102-104, and 107-115.

Through the meet-and-confer process (as reflected in the supplemental reports), it appears to the Court that the parties have resolved their disputes as to many of the special interrogatories, but disputes remain regarding Special Interrogatories Nos. 42, 56, 71, 87, 98, 100, 102, 104, 107, 109, 110, 111, and 112.

Special
Interrogatories Nos. 42, 110

Defendant's objection to these interrogatories as to time and as to not being reasonably calculated to leave to the discovery of admissible evidence are sustained. To address these objections, the Court narrows the interrogatory to those policies in effect during the time period of Plaintiff's employment with Defendant.

Defendant's
other objections are overruled.

The motion to
compel is granted in part as to these interrogatories.

Special
Interrogatory No. 56

Defendant's objection to this interrogatory as vague and ambiguous is sustained. The interrogatory is unclear, leaving the

responding party to guess at what information is requested.

The motion to
compel is denied as to this interrogatory.

Special
Interrogatory No. 71

Defendant's
objection to this interrogatory as overly broad and not reasonably calculated
to lead to the discovery of admissible evidence is sustained.

The motion to
compel is denied as to this interrogatory.

Special
Interrogatory No. 87

Defendant's
objections based on confidentiality and privacy are sustained in part. Defendant must state the nature of the "exceptional
circumstances" that have been recognized by Defendant in general but need not,
at this time, identify which of these "exceptional circumstances" was
recognized in response to each instance identified in response to Special
Interrogatory No. 86.

The motion to
compel is granted in part as to this interrogatory.

Special
Interrogatory Nos. 98, 100, 102, 107, 109, 111, 112

Defendant's
objections are overruled.

The motion to
compel is granted as to these interrogatories.

Special
Interrogatory No. 104

Defendant's

objection to this interrogatory as overly broad and ambiguous is sustained. To address this objection, the Court narrows the interrogatory as follows: "Identify any job openings within LAUSD for which Plaintiff was objectively qualified but failed to apply after March 2024."

Defendant's

other objections are overruled.

The motion to

compel is granted in part as to this interrogatory.

Requests

for Production

Plaintiff

initially moved to compel further responses to Requests for Production Nos. 16-17, 19-20, 22-25, 28-33, 36-40, 43, 46-47, 49, and 51.

Through the

meet-and-confer process (as reflected in the supplemental reports), it appears to the Court that the parties have resolved their disputes as to many of the requests for production, but disputes remain regarding Requests for Production Nos. 16, 19-20, 25, 31-32, 36-40, 43, and 47.

Requests

for Production Nos. 16, 19, 20, 31, 37, 39, 43

Defendant's

objections are overruled.

The motion to

compel is granted as to these requests. To the extent that Defendant is asserting a privilege as to any responsive document, Defendant may produce a privilege log that meets all applicable legal requirements.

Requests

for Production Nos. 25, 38, 47

Defendant's objections

are sustained. The requests, as worded, are overly broad, are not reasonably calculated to lead to the discovery of admissible evidence, and impermissibly violate the privacy rights of third parties.

The motion to

compel is denied as to these requests.

Request

for Production Nos. 32, 36, 40

Defendant's

objections are sustained. The requests, as worded, do not specifically describe each individual item or reasonably particularize each category of item to be produced. Request No. 36, as worded, would require the production of all documents relating to the operation of an academy for two academic years.

The motion is denied

as to these requests.

Sanctions

Both parties' requests for sanctions are denied. The motions are granted in part and denied in part. To the extent that Plaintiff unsuccessfully made or Defendant unsuccessfully opposed the motions, the Court finds that the unsuccessful party acted with substantial justification and that the imposition of sanctions would be unjust.

Conclusion

The Court GRANTS

the motion of Plaintiff Verioska Gamez to compel Defendant Los Angeles Unified School District to Provide Further Responses to Employment Form Interrogatories (Set Two).

The Court ORDERS

Defendant to serve a code-compliant, verified response, without objections, to Employment Form Interrogatory 216.1 by no later than September 11, 2026.

The Court GRANTS

IN PART the motion of Plaintiff Verioska Gamez to compel Defendant Los Angeles Unified School District to Provide Further Responses to Special Interrogatories (Set Two).

The Court ORDERS

Defendant to serve code-compliant, verified responses, without objections, to Special Interrogatories Nos. 42 (as narrowed by this ruling), 87 (as narrowed by this ruling), 98, 100, 102, 104 (as narrowed by this ruling), 107, 109, 110 (as narrowed by this ruling), 111, and 112 by no later than September 11, 2026.

The motion is
otherwise denied.

The Court GRANTS

IN PART the motion of Plaintiff Verioska Gamez to compel Defendant Los Angeles Unified School District to Provide Further Responses to Requests for Production (Set Two).

The Court ORDERS

Defendant to serve code-compliant, verified responses, without objections, to Requests for Production Nos. 16, 19, 20, 31, 37, 49, and 43 by no later than September 11, 2026.

The motion is
otherwise denied.

The Court DENIES

each party's request for sanctions.

Moving Party is ORDERED to give notice.